**IN THE COURT OF THE HON'BLE V ADDITIONAL DISTRICT JUDGE AT COIMBATORE**

**O.S. No. 20 of 2024**

G Square Realtors Private Limited,
Represented by its Authorised Representative,
Mr. T.Prabhakaran,
Flat No.14, 3rd Floor, Harrington Apartment,
No.19, Harrington Road,
Chetpet, Chennai – 600 031. …Plaintiff

Versus

1. D.Senthilkumar,
aged 53 years,
S/o. Dhuruvakumar,
Door No.A-11, Srivari Brindhavan,
MG Road, Avarampalayam,
Coimbatore – 641 006.

2. B.Sabarinath,
aged 52 years,
S/o. Baskaran,
No.401, Raja Street,
Coimbatore – 641 001. …Defendants

**COMPROMISE PETITION FILED BY PLAINTIFF AND DEFENDANTS JOINTLY**

The parties to the suit beg to submit as follows:

1. That the defendants are the absolute owners of the land admeasuring an extent of 3.22 Acres, comprised in Survey Nos. 397/1 and 400/1B1 of Madukkarai Village, Coimbatore District, more fully described in Schedule-A mentioned hereunder, along with the adjacent land measuring 3.94 Acres, comprised in Survey Nos. 396/1 and 396/2 of Madukkarai Village, Coimbatore District, totally admeasuring an extent of 7.16 Acres, having purchased the same by way of a Sale Deed dated 29.03.2012, registered as Document No. 1873 of 2012, on the file of the Sub Registrar, Madukkarai.

2. Whereas, the plaintiff agreed to purchase the entire land from the defendant as per Term Sheet dated 13.10.2022 entered into between them whereby the

plaintiff agreed to purchase for a total price of Rs.16,99,00,000/- and paid an advance amount of Rs.1,00,00,000/- on that date to the defendants.

3. Whereas, the plaintiff subsequently informed that they got approval to form a layout of house sites over the A Schedule property herein named Western Ghats Phase I (RERA registration No.TN/11/Layout/3111/2023) with plots 1 to 77 as morefully described hereunder in Schedule B as First Phase and agreed to develop the remaining extent thereafter within stipulated time.

4. Whereas, in pursuance of which, at request of plaintiff, the defendant also settled an extent of 5213.73 sq.mt. of land out of Schedule A property in favour of the Commissioner, Madukkarai Municipality towards formation of roads, parks and other public purposes by way of a Gift Deed dated 22.06.2023, registered as Document No. 5027 of 2023, on the file of the Sub Registrar, Madukarai, which are to be conveyed in favour of the plaintiff or its nominees as 77 plots more fully described in the Schedule-B mentioned hereunder.

5. Whereas, at the time of execution of aforesaid Gift Deed, the plaintiff paid another sum of Rs.2,00,00,000/- all totaling they paid Rs.3,00,00,000/- as advance money and at this juncture, the plaintiff expressed its willingness to retain the project in Schedule A property herein measuring 3.22 acres as aforesaid and assured to develop the remaining extent of 4.00 acres thereafter.

6. In the above circumstances, owing to certain miscommunication between the parties hereto through exchange of Legal Notices, the above sale transaction could not be completed and the plaintiff had preferred the above suit seeking to direct the defendants to convey the Schedule-B mentioned property to the plaintiff or its nominees by due execution and registration of the Sale Deed. Further, after instituting the suit, the plaintiff had also preferred a complaint before the Madukkarai Police Station as against the defendants and others, which has been registered as Crime No.521 of 2023 dated 19.12.2023 and the investigation is still pending.

7. In the above circumstances, with a view to give quietus to the issue in an amicable manner, the parties deem it fit to enter into this compromise under the terms and conditions mentioned below.

A. The defendants shall convey the Schedule-B mentioned property as plots in favour of the plaintiff or its nominee(s) for a total sale consideration of Rs.7,39,75,156/- (Rupees Seven Crores Thirty Nine Lakhs Seventy Five Thousand Hundred and Fifty Six only) for the land extent available on the site and also considering the other factors.

B. The defendants shall execute absolute sale deed(s) or power of attorney deed(s) in respect of the Schedule B mentioned property in favour of the plaintiff or its nominee(s), as may be required by the plaintiff, upon receipt of the balance sale consideration.

C. Upon receipt of the balance sale consideration, the defendants shall hand over Parent documents – Original Sale Deed (Document No.820/2005) dated 23.03.2005 and Original Sale Deed (Document No.1747/2007) dated 23.03.2007 and other original relevant deeds and revenue records pertaining to the above mentioned property to the plaintiff and extend their absolute co-operation in completing the sale of the developed plots to the plaintiff's customers in all manner, including issuance of life certificates and other necessary documents that may be necessary for better assuring the title of the said property or whatsoever.

D. The plaintiff shall have no right or claim over the remaining extent of 4.00 acres in S.F.No.396/1 and 396/2 of Madukkarai Village, Coimbatore which is adjoining to it and the defendants shall have absolute right to deal with it as its absolute owners and the defendants or through any purchasers from them pertaining to aforesaid 4.00 acres, shall have the right of usage of layout rights formed in Phase I over an extent of 3.22 acres namely Schedule A herein. It is mutually agreed that the plaintiff or through any person being purchaser of Phase I layout sites shall have no right to obstruct the defendants or their purchaser from in anyway using Western Ghats Phase I layout roads to access aforesaid 4.00 acres of land.

E. The defendants shall bear any levy/ duty/ charge/ fee/ rates/ taxes and other outgoings that may be imposed/ enforced by the State/Central Laws or Order of any statutory body/Authority arising out of the above said transaction as per the applicable legal provisions.

8. Subject to compliance of the above terms and conditions by the defendants, the plaintiff does hereby agree to co-operate for amicable closure of the criminal case pending in Crime No. 521 of 2023, on the file of the Madukkarai Police Station by consenting for withdrawal/ compounding/ quashing of the said proceedings, as may be required by the defendants.

9. The parties hereto agree that the cost incurred by them in the legal proceedings shall be borne by the respective parties and the plaintiff shall be entitled to seek refund of the court fee paid in the above suit as prescribed.

It is therefore humbly prayed that this Hon'ble Court may be pleased to pass a Compromise Decree in the above suit in terms of the above compromise and pass such further or other orders as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case and thereby render justice.

Dated at Coimbatore on this the .....day of April 2024

1.

2.

**DEFENDANTS** **PLAINTIFF**

**COUNSEL FOR DEFENDANTS** **COUNSEL FOR PLAINTIFF**

## SCHEDULE OF PROPERTY

### Schedule-A

All that piece and parcel of the land admeasuring an extent of 3 Acres 22 Cents (13050 square meter), comprised in Survey No. 397/1 (91 Cents) and Survey No. 400/1B1 (2 Acres 31 Cents), Madukkarai Village, Madukkarai Taluk, Coimbatore District, lying within the limits of Registration sub-district of Madukkarai and Registration District of Coimbatore.

### Schedule-B

(Developed plots forming part of Schedule-A)

All that piece and parcel of the land admeasuring a total extent of 7836.27 square meter situated at Plot Nos. 1 to 77, Western Ghats Phase-1 Layout bearing RERA Registration No. TN/11/Layout/3111/2023, comprised in Survey No. 397/1 and Survey No. 400/1B1, Madukkarai Village, Madukkarai Taluk, Coimbatore District, lying within the limits of Registration sub-district of Madukkarai and Registration District of Coimbatore.

Dated at Coimbatore on this the …… day of ……. 2024

1.

2.

**DEFENDANTS** **PLAINTIFF**

**COUNSEL FOR DEFENDANTS** **COUNSEL FOR PLAINTIFF**

**IN THE COURT OF THE HON'BLE V ADDL. DISTRICT JUDGE AT COIMBATORE**

O.S. No. 20 of 2024

G Square Realtors Private Limited
…Plaintiff

Versus

1. D.Senthilkumar
2. B.Sabarinath

…Defendants

**JOINT COMPROMISE MEMO**

K.SURENDAR
[Ms. 1048 of 2009]
CHENTHOORI PUGAZENDHI
[Ms. 1073 of 2009]
C.A. MOHAN KUMAR
[Ms. 2266 of 2016]

**Counsel for Plaintiff**
97877 04646